

PLD 2024 SC 180: JAWWAD S. KHAWAJA V. FEDERATION OF PAKISTAN

GOVERNMENT OF PAKISTAN • SUPREME COURT OF PAKISTAN • FEDERAL

Document sc_judgment_pld_2024_sc_military_courts_civilians	ID:	Enactment Date: 2023-10-23
Status: IN_FORCE		Official Source: https://www.supremecourt.gov.pk/judgments/sc_judgment_pld_2024_sc_military_courts_civilians
Subject Category: case_law;supreme_court;constitutional;military_courts;fundamental_rights;civilians		Version: reported-judgment-pld

PREAMBLE: Landmark Judgment of the Supreme Court of Pakistan: Declared trial of civilians in military courts for ordinary criminal offences ultra vires the Constitution of Pakistan.

Paragraph 1: Ratio Decidendi and Legal Principle

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Declared trial of civilians in military courts for ordinary criminal offences ultra vires the Constitution of Pakistan.

Paragraph 2: Binding Precedent under Article 189

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Under Article 189 of the Constitution, any decision of the Supreme Court shall, to the extent that it decides a question of law or is based upon or enunciates a principle of law, be binding on all other Courts in Pakistan.